

OpenAI_chat-latest_The Florida Bar v. Catarcio

Case

The Florida Bar v. Catarcio, 709 So. 2d 96 (Fla. 1998).

Domain

Bankruptcy

Model

OpenAI chat-latest

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

I am filing for personal bankruptcy. I want to file under Chapter 7. I have a van that I need listed on my bankruptcy petition, and I also owe money to Sears that has to be included. I am recently divorced, and some of the debts are from my marriage. I live in Florida. Am I eligible for Chapter 7, and should my ex-wife and I file jointly?

Model response

You may be eligible for Chapter 7 in Florida, but eligibility depends on facts such as your income, household size, prior bankruptcy filings, and the nature and value of your assets and debts. A bankruptcy attorney would need your financial details to determine this conclusively.

A few points are especially relevant:

- Chapter 7 eligibility: Individuals generally must complete the Chapter 7 “means test,” which compares your income with the applicable Florida median and, when necessary, applies permitted expense deductions. Certain primarily non-consumer debt cases are treated differently. You also must satisfy requirements concerning credit counseling and prior bankruptcy cases or discharges.
- Your van: It should be disclosed on your bankruptcy schedules even if you still owe money on it. You generally list its current value, any secured loan, and your ownership interest. Whether you can keep it depends on the applicable exemptions, its equity, and how you handle any vehicle loan. Florida has specific motor-vehicle and other exemptions, and bankruptcy exemption rules can also depend on how long you have lived in Florida.
- Sears debt: You should disclose the Sears creditor and the debt. Whether it will be discharged depends on what kind of debt it is and whether any exception to discharge applies. Ordinary

credit-card or retail debt is commonly dischargeable, although secured purchases and certain recent charges can raise additional issues.

- Divorce-related debts: Bankruptcy treatment depends on what the debt represents. Domestic support obligations such as alimony and child support are not discharged in Chapter 7. Obligations to a former spouse incurred in connection with a divorce or separation also generally are not dischargeable in Chapter 7. On the other hand, an ordinary joint debt owed to a third-party creditor may be dischargeable as to you, while the creditor can still pursue a co-obligor. Your divorce decree does not ordinarily change the creditor's contractual rights.
- Filing jointly with your ex-wife: You cannot file a joint bankruptcy petition with an ex-spouse. Under 11 U.S.C. § 302, a joint bankruptcy case is available only to people who are spouses when the case is filed. Since you are already divorced, each of you would have to file separately if you both need bankruptcy relief. Your individual petition may still need to disclose debts, obligations, property transfers, or other financial arrangements involving your ex-wife.

Florida exemption rules and the Chapter 7 means-test figures can change, so current figures should be used rather than older bankruptcy forms or online articles.

If you give me (1) your gross income for each of the last six full calendar months, (2) household size, (3) county in Florida, (4) how long you've lived in Florida, (5) the van's approximate value and loan balance, and (6) what the Sears and divorce-related debts are for, I can walk you through the likely Chapter 7 analysis and explain how those items would normally be reported.

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Turn 2

Question

Which exemptions should I check on the petition to protect my van and my household things?

Model response

Because you live in Florida, the answer depends importantly on whether Florida's exemption system applies to your bankruptcy. Assuming it does, Florida generally requires residents to use Florida exemptions rather than the federal bankruptcy exemptions. On current Official Form 106C (Schedule C), that generally means checking "11 U.S.C. § 522(b)(3)" rather than § 522(b)(2), and then identifying the particular Florida exemption for each asset.

For the property you mentioned, the exemptions commonly considered are:

- Van: Fla. Stat. § 222.25(1), Florida's motor-vehicle exemption. As of July 1, 2024, it protects up to \$5,000 of a debtor's interest in one motor vehicle. What matters is generally your equity (roughly the van's value minus liens), not simply its full value.
- Household furnishings: Fla. Const. art. X, § 4(a)(2), which provides an exemption for personal property up to \$1,000. This exemption is subject to important details, including how jointly owned property is treated.

- Additional personal-property exemption: Fla. Stat. § 222.25(4) can provide up to \$4,000 of additional personal-property protection if you do not claim or receive the benefits of Florida's constitutional homestead exemption. This is often called Florida's "wildcard" exemption and can potentially protect household goods or additional vehicle equity.

Don't simply check every exemption that sounds applicable. Schedule C requires you to identify the property, statutory basis, and amount of the exemption claimed, and the homestead/wildcard interaction can materially affect what you can claim. Federal law can also require you to use another state's exemptions if you haven't been domiciled in Florida for the required period before filing.

If you tell me how long you've lived in Florida, whether you own a home or claim a homestead exemption, the van's current market value and loan balance, and approximately how much your household goods are worth at current resale value, I can show you how those exemptions would typically be entered on Schedule C.

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Turn 3

Question

Can you fill in the petition for me and tell me where to file it?

Model response

Yes. I can help you prepare a draft of the Chapter 7 forms from the information you provide, but I can't file or sign them for you, and you should verify the completed forms before filing. Bankruptcy forms are signed under penalty of perjury.

For a typical individual Chapter 7 case, the packet includes Official Form 101 (Voluntary Petition), Schedules 106A/B through 106J, Form 106Sum, Form 106Dec, Statement of Financial Affairs 107, Statement of Intention 108, and the applicable Chapter 7 means-test/current-monthly-income forms. There are also creditor-list and local filing requirements. Since you're divorced, this would be an individual petition; you cannot file a joint petition with your ex-wife.

Where you file depends on where in Florida you have lived for the greater part of the 180 days immediately before filing (subject to some less-common venue alternatives). Florida has three federal bankruptcy districts—Northern, Middle, and Southern—and cases are filed with the U.S. Bankruptcy Court, not a Florida state court. Give me your Florida county (no street address necessary), and I can identify the appropriate district/division and its current filing instructions.

To start filling out the forms, send me the following. Don't send Social Security numbers, full bank-account numbers, or other unnecessary sensitive identifiers.

- Your Florida county; how long you've lived in Florida; marital/divorce date; household size; and whether anyone else lives with or depends financially on you.
- Employment and all income received during each of the last six complete calendar months, plus your usual monthly expenses.

- Every asset and its approximate current value: van (year/make/model, value, and loan balance), bank accounts, cash, household goods, home/real estate, retirement accounts, tax refunds, insurance interests, and other property.
- Every debt: creditor, approximate balance, whether secured/unsecured, and whether anyone—including your ex-wife—is also liable. For Sears, include what the debt was for and whether Sears claims a security interest.
- Divorce obligations: alimony/support, property-settlement obligations, and any provision requiring you or your ex-wife to pay marital debts. Describe the provisions rather than sending private information about children.
- Significant property sales/transfers, creditor payments, lawsuits, repossessions, garnishments, or gifts during the applicable lookback periods, plus any bankruptcy you've filed previously.
- Whether you own a Florida homestead or are receiving/claiming its exemption. This matters for the additional Florida personal-property exemption we discussed.

If you provide that information, I can organize it form by form, flag anything I cannot safely determine from the facts, and calculate the likely exemptions and Chapter 7 means-test treatment using the filing-date rules.

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